

1.

| CASE #      | CASE NAME                          | HEARING NAME                                                                                                          |
|-------------|------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| CVPS2405028 | CAZARES VS BODON LORI LIVING TRUST | MOTION FOR JUDGMENT ON THE PLEADINGS ON 1ST AMENDED COMPLAINT OF MARCO CAZARES BY BODON LORI LIVING TRUST, LORI BODON |

**Tentative Ruling:**

No response or opposition to the motion submitted by Plaintiff.

Motion for Judgment on the Pleadings GRANTED with leave to amend. Plaintiff to file an amended complaint within 30 days.

No further amendments shall be permitted by Plaintiff. The court notes that Plaintiff's First Amended Complaint failed to address most, if not all the deficiencies highlighted by Defendant's original motion for judgment on the pleadings.

Case Management Conference continued to 10.22.26.

2.

| CASE #      | CASE NAME              | HEARING NAME                                                                |
|-------------|------------------------|-----------------------------------------------------------------------------|
| CVPS2407937 | ROUSE VS WALMART, INC. | MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT BY APPLIED MOBILITY DEVICES, LLC |

**Tentative Ruling:** No tentative ruling. Hearing was continued to 7.30.26.

3.

| CASE #      | CASE NAME                              | HEARING NAME                          |
|-------------|----------------------------------------|---------------------------------------|
| CVPS2500583 | DIAFERIO VS CITY OF DESERT HOT SPRINGS | HEARING ON PEREMPTORY WRIT OF MANDATE |

**Tentative Ruling:**

Factual Summary:

On or about October 20, 2017, Petitioner purchased real property located at 9900 Palm Dr. ("Property") in the City of Desert Hot Springs from Rudy Muessel. (AR CDHS00010 and CDHS00020-31.) The Property includes a single-story detached, 4-vehicle garage. (AR CDHS00199.) The Property is zoned for single-family residential use, and it used to include a house that was appurtenant to the garage. (AR CDHS00199 and CDHS00201, Transcript.) At some point, the house was subdivided from the Property and it is now owned by a different person. (AR CDHS00199.)

On or about March 7, 2023, the City received a complaint that Petitioner had converted the garage into a residential dwelling. (AR CDHS00199.) In response to the complaint, the City's Code Compliance Officer, Linda Human, visited that same day and discovered that the garage doors had been removed from the garage and replaced with residential doors and windows. (AR CDHS00011 and CDHS00199.) Ms. Human also observed tree limbs scattered about the alleyway adjacent to the Property, excessive

weeds on the Property, a water tank attached to the garage, and several covered vehicles. (AR CDHS00200.)

As a result, on April 19, 2023, the City issued a Courtesy Notice of Violation to Petitioner informing him that the garage was an illegal, nonconforming structure, and that the excessive weeds and unkempt landscaping also violated the Municipal Code. (AR CDHS00035-39 and AR CDHS00199.) Shortly thereafter, on April 30, 2023, there was a fire in the garage which caused smoke damage to the garage façade and windows, as well as the household furniture that was inside the garage. (AR CDHS00012 and CDHS00199.)

Ms. Human visited the Property again on May 1, 2023, and during that visit she discovered that the electrical panel supplying power to the garage was still connected to the residential dwelling that used to be the main dwelling appurtenant to the garage. (AR CDHS00199.)

Ms. Human inspected the Property again nearly a month later, on May 22, 2023, and found that Petitioner had not cured any of the code violations identified in the Courtesy Notice of Violation. (AR CDHS00012.) Ms. Human called Petitioner and left him a voicemail message requesting permission to inspect the interior of the garage because the City was concerned about the structural integrity of the garage after the fire. (AR CDHS00012.)

By June 15, 2023, Petitioner had not responded to Ms. Human's voicemail messages, so she prepared and mailed a Request for Consent to Inspect Private Property. (AR CDHS00012, CDHS00047-55, and CDHS00200.) Ms. Human conducted an exterior inspection of the Property on June 20, 2023. (AR CDHS00199.) Petitioner was invited to attend the inspection but canceled the inspection and left Ms. Human a voicemail message informing her that he would respond in writing to the Request for Consent to Inspect Private Property. (AR CDHS00012.) Ms. Human responded to Petitioner's voicemail by calling him multiple times, but Petitioner did not answer. (AR CDHS00012.) Therefore, on June 20, 2023, Ms. Human issued a second Courtesy Notice of Violation. (AR CDHS00057-62.)

On or about July 10, 2023, Ms. Human received a letter from Petitioner, which included a copy of the June 20, 2023, Courtesy Notice of Violation. (AR CDHS00012 and CDHS00064-68.) In his letter to the City, and in comments that he wrote on the Courtesy Notice of Violation, Petitioner denied each of the Municipal Code violations that were identified in the Courtesy Notices of Violation. (AR CDHS00012 and CDHS00064-68.) Further, in his letter to the City and in his comments on the Courtesy Notice of Violation, Petitioner claimed that he had only used the garage for storage. (AR CDHS00012 and CDHS00064-68.)

Ms. Human reinspected the Property on the same day that she received Petitioner's correspondence, and she observed that the violations remained unabated. (AR CDHS00012 and CDHS00200.) Therefore, she issued a Final Notice of Violation to Petitioner. (AR CDHS00012, CDHS00200 and CDHS00070-74.)

Through researching the history of the Property, Ms. Human discovered that the City had initiated a prior code enforcement action against the Property in June 2018 while Petitioner owned the property. (AR CDHS00013 and CDHS00076-84.) On June 10, 2018, the City had issued a Courtesy Notice of Violation to Petitioner which included photographs. Those photographs show that, at that time, the garage was still a garage. (AR CDHS00013 and CDHS00076-84.) There was no evidence that at that time Petitioner was using or attempting to use the garage as a residential dwelling. At least as of June

2018, the front of the garage had an entry door, a garage door wide enough for two cars, and a small window. (AR CDHS00013 and CDHS00076-84.)

During Ms. Human's multiple visits to the Property in connection with the March 2023 code enforcement investigation, she observed several things that contradicted Petitioner's representations that he had not converted the garage to a residential dwelling. The two-car garage door had been removed and replaced with a residential window and smaller one-car garage door, and the smaller window had been replaced with a large residential window. (AR CDHS00010 and CDHS00076-84.) Additionally, the garage originally had one toilet, but that section of the garage has been converted into a full bathroom with a toilet and shower. (AR CDHS00199-200.) Ms. Human also saw that the open interior of the garage had been subdivided into multiple rooms containing household furniture; a water tank had been affixed to the garage; and power was being illegally supplied to the garage from the house next door. (AR CDHS00011-12 and CDHS00200.)

On July 13, 2023, the Honorable Harold W. Hopp issued a warrant allowing the City to conduct a more thorough inspection of the Property, including the interior of the garage. (AR CDHS00013 and CDHS00086-93.) Ms. Human mailed a copy of the warrant to Petitioner, and she also posted a copy of the warrant at the Property. (AR CDHS00013, CDHS00086-93 and CDHS00200.) On July 25, 2023, Ms. Human, Code Compliance Officer Tyler Messer, and the City's Building Inspector, Scott Havener, inspected the Property and garage in accordance with the conditions set forth in the Inspection Warrant. (AR CDHS00013 and CDHS00200.) During that inspection, Ms. Human observed that the interior of the garage had been subdivided by a wall and one of the rooms contained mattresses, chairs, a sofa, and other residential furniture. (AR CDHS00013 and CDHS00200.) She also observed a closet and a bathroom containing a shower, sink, and toilet. (AR CDHS00013 and CDHS00200.)

The after-effects of the April 30, 2023, fire in the garage were also visible. (AR CDHS00013, CDHS00200 and CDHS00200.) The walls and ceiling showed signs of fire damage, and it was apparent that someone had attempted to conceal the damage with paint. (AR CDHS00013, CDHS00200 and CDHS00200.)

The other room contained three vehicles, but Ms. Human did not observe any doors or means of ingress/egress through which the vehicles could be removed. (AR CDHS00013 and CDHS00200.) After the inspection the City's building inspector, after observing rooms that were illegally constructed and not safe to occupy because they had not been built pursuant to a City-issued building permit, "red tagged" the garage as unsafe for occupancy. (AR CDHS00202.)

Ms. Human then issued an Administrative Citation to Petitioner based on his refusal to abate the nuisances identified in the Courtesy Notices mailed to him on April 19, 2023, and June 20, 2023. (AR CDHS00202 and CDHS00095-102.)

On July 31, 2023, Petitioner visited the City's municipal offices and informed City staff that he intended to sell the Property. (AR CDHS00014.) The City refrained from taking additional measures to abate the nuisances at the Property based on Petitioner's representation that he would sell the Property to a buyer who could remedy the myriads of code violations existing at the Property. (AR CDHS00014.) Over the next six months, Ms. Human continued to inspect the Property and during that timeframe, Petitioner did not cure the municipal code violations or apply for any building permits. (AR CDHS00014 and CDHS00200.)

On or about December 27, 2023, Petitioner informed the City that he was not going to sell the Property. (AR CDHS00014.) As of that date, he had not rectified the code

violations at the Property. (AR CDHS00200-201.) Therefore, on December 27, 2023, the City issued Petitioner a Notice of Public Nuisance & Order to Abate (“Abatement Order”). (AR CDHS00200-201, CDHS00109-115, and CDHS00199-200.)

On or about January 19, 2024, the City received Petitioner’s appeal of the Abatement Order. (AR CDHS00014.) On or about January 22, 2024, the City’s Director of Code Compliance, Christina Newsom, responded to Petitioner’s appeal by sending him a letter informing him that although his appeal was filed late, the City would still allow the appeal to proceed if Petitioner submitted the required administrative hearing fee within ten business days from the date of her correspondence. (AR CDHS00014 and CDHS00133-139.)

On March 25, 2024, Ms. Newsom sent Petitioner a letter explaining each of the municipal code violations in detail and reiterating that Petitioner could abate the violations by either building a primary structure and converting the garage back into a garage or demolishing the garage and converting the parcel into vacant land. (AR CDHS00014 and CDHS00141-142.) A few days later, on April 9, 2024, Ms. Human inspected the Property and observed that Petitioner had not undertaken any actions to remedy the code violations. (AR CDHS00015 and CDHS00199-200.)

City issued another Administrative Citation regarding the Property, and after giving the appropriate notice, the City scheduled a hearing on Petitioner’s appeal of the Abatement Order for October 23, 2024. (AR CDHS00144-157.) The hearing proceeded as scheduled with both Petitioner and representatives for the City appearing before an administrative Hearing Officer where they presented evidence and testimony. (AR CDHS00211.)

At the hearing, Ms. Human testified consistent with the preceding facts. (AR CDHS00199-CDHS00201.) Patricia Villagomez, City’s Principal Planner testified that the property is zoned single family residential use and summarized Municipal Code Section 17.124.030C and 17.104.020. AR CDHS00201.) Scott Havener, City’s Building Inspector, testified that he inspected the property on July 25, 2024 and confirmed that there was a room constructed without permit, that could be used for sleeping, and therefore red tagged the building. (AR CDHS00201-CDHS00203.) Petitioner Diaferio testified that the bathroom in the structure was put in by the city and the building was never occupied it was used for an office and for storage. (AR CDHS00203-CDHS00205.) As to the cars, he testified that they have been removed from the property. (AR CDHS00204.) Next, James Chumbly, owner of the house next door, testified that he wanted to see Petitioner sell the property and see the structure gone and a house built there. (AR CDHS00205-CDHS00206.)

In closing, Diaferio told the Hearing Officer that he bought the property as a legal, nonconforming structure—a garage still with a garage door and cars parked inside. (AR CDHS00208-CDHS00209.) He argued that he uses it in the same fashion the city did when they had their service center there. (AR CDHS00208-CDHS00209.)

On November 25, 2024, the Hearing Officer served the parties with his written findings of fact and order upholding the Abatement Order based on violations of Desert Hot Springs Municipal Code sections 4.16.010.A.17, 4.16.010.A.3, 17.124.030.C and 8.40.030.A. (AR CDHS00211-217.)

The Hearing Officer, decision and order consists of 6 pages. (AR CDHS00211-CDHS00217.) In summary fashion, the decision and order sets forth who appeared, who provided testimony, then finds that “[b]ased on the documented information provided by the City, as well as the information presented by the testifying witnesses or otherwise

submitted by the parties,” that the officer found “that the facts of record are sufficient to uphold the Notice of Public Nuisance and Order to Abate (the “Notice”) issued by the City as of December 27, 2023.” (AR CDHS00211-CDHS00217.)

The decision concluded that the City met its burden of establishing, by a preponderance of the evidence, that the municipal code violations set forth in the Abatement Order existed at the Property, and Petitioner “did not provide sufficient evidence of the lack of violations at the Property.” (AR CDHS00211-217.)

Specifically, the Hearing Officer found the following violations to exist:

Section 4.16.010.A.17 – Fire-damaged nonconforming building needs permits. Permits needed to merge the Property with its primary habitable dwelling (or to erect a primary habitable dwelling structure on the Property or to demolish existing structure and revert the Property to vacant land). Illegally converted structure is impermissibly occupied by people.

Section 4.16.010.A.3 – Weeds are in the desert landscaped areas. Weeds and dead vegetation are in the back of the Property, alongside the alleyway.

Section 17.124.030.C – Occupants and vehicles impermissibly found at the Property.

Section 8.20.030.A – Property not registered as a vacant property.

(AR CDHS00211-217.)

Based on these findings, the Hearing Officer upheld the Notice issued by the City and found that the Property be deemed a public nuisance. (AR CDHS00211-217.) On February 11, 2025, Petitioner initiated this lawsuit by filing a Verified Petition for Writ of Administrative Mandamus.

#### Analysis:

Pursuant to CCP §1094.5, an administrative writ may be issued for inquiring “into the validity of any final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer.” (CCP § 1094.5(a).) The reviewing court’s scope of inquiry extends to questions regarding: (1) whether the respondent proceeded without or in excess of jurisdiction; (2) whether there was a fair trial; and (3) whether there was a prejudicial abuse of discretion because the hearing did not proceed in a manner required by law, the decision was not supported by the findings or the findings were not supported by evidence. (CCP § 1094.5(b).)

The standard of review depends on the nature of the right affected by the administrative decision. (*MHC Operating Limited Partnership v. City of San Jose* (203) 106 Cal.App.4th 204, 217.) If the decision substantially affects a vested, fundamental right, then the trial court exercises its independent judgment upon the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143.) A “fundamental vested right” denotes a right that is already possessed, as opposed to a right that is merely sought, as that term is used in the “independent judgment” rule, which is a test for judicial review of the evidentiary basis for an agency’s decision and which applies when the decision of the agency will

substantially affect a fundamental vested right. (*Kalway v. City of Berkeley* (2007) 151 Cal.App.4th 827, 832.) The independent judgment test applies here.

Under the independent judgment test, “abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence.” (CCP §1094.5(c).) In *Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 817-18, the California Supreme Court explained that in the “weight of the evidence” test applicable under “independent judgment review,” there is “a strong presumption of correctness concerning the administrative findings” which “provides the trial court with a starting point for review— but it is only a presumption, and may be overcome. Because the trial court ultimately must exercise its own independent judgment, that court is free to substitute its own findings after first giving due respect to the agency’s findings.” The general rule, however, is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency. [Citation.]” (*Pomona Valley Hosp. Med. Ctr. v. Superior Ct.* (1997) 55 Cal.App.4th 93, 101.)

The Code Enforcement Officer cited Diaferio with violations of Desert Hot Springs Municipal Code sections 4.16.010.A.17, 4.16.010.A.3, Section 17.124.030.C and Section 8.40.030.A, which violations the Hearing Officer upheld.

#### DHS Municipal Code §4.16.010 and §17.124.030:

Section 4.16.010 sets forth what unlawful acts constitute a public nuisance.

Section A.3 provides that “[i]t is unlawful and it shall be a public nuisance for any person owning, leasing, occupying or having charge or possession of any premises or property in the City to maintain such premises or property in a manner that has resulted in overgrown weeds to be present on any front and visible side yards and sidewalks. (DHS Municipal Code §4.16.010.A.3.) Petitioner Diaferio does not challenge the Hearing Officer’s determination regarding weeds at the property constituting a public nuisance.

Section A.17 provides that “[i]t is unlawful and it shall be declared a public nuisance for any person owning, leasing, occupying or having charge or possession of any premises or property in the City to maintain upon any such premises or property any building or structure, or any part thereof, which has been constructed or is maintained in violation of any applicable state or local law or regulation relating to the condition, use or maintenance of such building or structure.” (DHS Municipal Code §4.16.010.A.17.)

The finding was that the structure is a public nuisance, pursuant to section 4.16.010.A.17, as it was constructed or maintained in violation of section 17.124.030.C. Section 17.124.030 sets forth nonconforming structure uses. Section 17.124.030.C provides that “[a]dditional development of any property on which a legal nonconforming use exists shall require that all new uses conform to the provisions of this Zoning Ordinance.” (DHS Municipal Code §17.124.030.C.)

The Hearing Officer’s limited findings state that the basis for finding the violation of both sections 4.16.010.A.17 and 17.124.030.C was that the structure was “occupied by people” and “occupants ...[were] impermissibly found at the Property.” However, the record is devoid of any evidence or testimony that anyone was occupying the property. The evidence reflects that there were modifications made to the structure: the installation of larger windows, a smaller garage door, and the presence of interior walls that created a new separate room, and there was household furniture inside. Noticeably absent was any testimony of evidence of anyone residing in the structure, that there were any kitchen facilities or items, or any other evidence that the structure was being used inconsistently with its nonconforming use.

While this court must apply a strong presumption of correctness to the Hearing Officer's findings, this court must exercise its own independent judgment and may substitute its own findings after giving due respect to the Hearing Officer's findings. In applying its own independent judgment, the court finds that the Hearing Officer's finding are not supported by the weight of the evidence and therefore, finds that the Hearing Officer abused his discretion. Under the independent judgment test, "abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence." (CCP §1094.5(c).)

DHS Municipal Code §8.40.030.A:

Section 8.40 covered abandoned building registration. Section 8.40.030.A provides that "[a]n owner of a vacant building must register his or her property with the City within 10 days of the building becoming vacant or deemed vacant by the City. If any building shows evidence of vacancy, it shall be deemed vacant and abandoned." Petitioner Diaferio acknowledges he declined to register the Property as vacant, to avoid triggering DHS Municipal Code §17.124.020.

Respondent's Request for Judicial Notice Exhibits #1 and #2 GRANTED.

Petitioner's Writ of Mandate GRANTED.

The Hearing Officer's decision regarding violations of DHS Municipal Code §4.16.010 A.17 and §17.124.030 are vacated and the matter is remanded to the City of Desert Hot Springs to reevaluate its December 27, 2023 Abatement Order in light of the court's ruling.

4.

| CASE #      | CASE NAME                                                            | HEARING NAME                                                                        |
|-------------|----------------------------------------------------------------------|-------------------------------------------------------------------------------------|
| CVPS2507878 | GROSSMAN<br>GUIRAGOSSIAN VS<br>BERMUDA DUNES<br>SECURITY ASSOCIATION | MOTION FOR ATTORNEYS FEES BY<br>BERMUDA DUNES SECURITY<br>ASSOCIATION, SYLVIA BARAN |

**Tentative Ruling:** The prevailing defendant on an anti-SLAPP motion is entitled to recover his or her attorney's fees and costs. (CCP § 425.16, subd. (c).) A defendant who partially succeeds on an anti-SLAPP motion is generally considered a prevailing party, "unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion." (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.) The court has broad discretion when determining whether a party prevailed on an anti-SLAPP motion. (*Ibid.*) Where there is partial success on such a motion, courts look to the practical benefit, either achieved or not achieved, toward the litigation by defendant's motion. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 232; *Moran v. Endres* (2006) 135 Cal.App.4th 952, 955; *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 783-784.)

The prevailing defendant on a special motion to strike "shall be entitled" to recover his or her attorney fees and costs, and this fee award is mandatory. (CCP § 425.16, subd. (c); *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) In awarding attorneys' fees under Code of Civil Procedure section 425.16, courts generally apply the lodestar approach, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate